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Case Number: 25NNCV07323 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: August 7, 2026

Case No: 25NNCV07323 Trial Date:

Case Name: Ghaffari v. U.S. Bank National Association, et al.

DEMURRER

[CCP § 430.10 subd. (e)]

Moving Party: Defendants, Albertelli Law a/k/a ALAW ("ALAW") and America West Lender Services, LLC ("AWEST")

Responding Party: Plaintiffs, Linda Ghaffari and Gina Ghaffari

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Quiet Title

2) Wrongful Foreclosure

3) Cancellation of Instruments

4) Violation of California Homeowner Bill of Rights

5) Misrepresentation

6) Injunctive Relief

The Court may take judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States” and of [f]acts and propositions that are not reasonable subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evidence Code, § 452, subds. (c) and (h).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885.)

Pursuant to ALAW and AWEST’s request, the Court takes judicial notice of the following:

1) The Grant Deed to Linda Ghaffari, an unmarried woman, dated April 28, 2005, and recorded on May 4, 2005, as Document No. 05 1044475 in the Los Angeles County Recorder’s Office

2) The Deed of Trust dated February 14, 2007, and recorded on February 21, 2007, as Document No. 20070369459 in the Los Angeles County Recorder’s Office

3) The Assignment of Deed of Trust dated April 23, 2013, and recorded on May 21, 2013, as Document No. 20130757264 in the Los Angeles County Recorder’s Office.

4) The Corporate Assignment of Deed of Trust dated November 15, 2023, and recorded on November 22, 2023, as Document No. 20230813409 in the Los Angeles County Recorder’s Office.

5) The Substitution of Trustee dated October 10, 2023, and recorded on October 13, 2023, as Document No. 20230698306 in the Los Angeles County Recorder’s Office.

6) The Notice of Default dated October 17, 2023, and recorded on October 18, 2023, as Document No. 20230710561 in the Los Angeles County Recorder’s Office.

7) The Notice of Trustee’s Sale dated April 15, 2024, and recorded on April 16, 2024, as Document No. 20240247208 in the Los Angeles County Recorder’s Office.

8) The Notice of Trustee’s Sale dated May 21, 2025, and recorded on May 23, 2025, as Document No. 20250345292 in the Los Angeles County Recorder’s Office

9) The Trustee's Deed Upon Sale dated September 17, 2025, and recorded on September 22, 2025, as Document No. 20250651964 in the Los Angeles County Recorder's Office.

(RJN, Exs. 1-9.)

SUMMARY OF FACTS:

The FAC alleges that Plaintiff Linda Ghaffari ("Linda") is the owner of real property located at 9531 Via Salerno, Unit 33, Burbank, California 91504. Plaintiff Gina Ghaffari ("Gina") is Linda's daughter and resides at the property. The FAC alleges that in 2007, Linda obtained a mortgage loan secured by a Deed of Trust recorded against the property. The loan was placed into default in August 2011. Plaintiffs allege that they submitted approximately 19 loss mitigation applications between 2014 and 2024, each of which was denied or not approved. The FAC alleges that Defendants failed to provide a consistent or meaningful pathway to resolution. Defendants conducted a foreclosure auction on August 26, 2025, and a Trustee's Deed Upon Sale was recorded on September 22, 2025. Plaintiffs allege various irregularities throughout the bankruptcy, foreclosure and unlawful detainer processes and allege that the foreclosure was invalid.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Tender

ALAW and AWEST first demur to the entire Complaint on grounds that Plaintiffs fail to allege tender. The tender requirement applies to "any cause of action for irregularity in the sale procedure," including wrongful foreclosure, quiet title, rescission, and declaratory relief. (Abdallah v. United Savings Bank (1996) 43 Cal.App.4th 1101, 1109; see McElroy v. Chase Manhattan Mortgage Corp. (2005) 134 Cal.App.4th 388, 394.) "It is well settled in California that a mortgagor cannot quiet his title against the mortgagee without paying the debt secured." (Shimpones v. Stickney (1934) 219 Cal. 637, 649; see Aguilar v. Bocci (1974) 39 Cal.App.3d 475, 477-478 [mortgagor "cannot clear his title without satisfying his debt"].)

In the opposition, Plaintiffs argue that they have sufficiently alleged facts demonstrating an exception to the tender rule. (Opp., pp. 7:19-8:3.) The FAC alleges that "tender is excused because Defendants' conduct rendered any attempt at tender futile and inequitable, including but not limited to: (a) Defendants' rejection or failure to evaluate Plaintiffs' cash and third-party purchase offers as alleged in paragraphs 36 through 38; (b) Defendants' issuance of reinstatement demands while simultaneously proceeding with foreclosure as alleged in paragraphs 39 through 41; and (c) Defendants' long-term pattern of denying and mishandling loss mitigation applications and allowing the claimed indebtedness to increase over time as alleged in paragraphs 35.1 through 35.2." (FAC, ¶ 69.1) None of these allegations constitute an exception to the tender rule.

“Recognized exceptions to the tender rule include when: (1) the underlying debt is void, (2) the foreclosure sale or trustee's deed is void on its face, (3) a counterclaim offsets the amount due, (4) specific circumstances make it inequitable to enforce the debt against the party challenging the sale, or (5) the foreclosure sale has not yet occurred.” (Chavez v. Indymac Mortgage Services (2013) 219 Cal.App.4th 1052, 1062.) Plaintiffs attempt to invoke the fourth exception, arguing that enforcing the debt against Plaintiffs would be inequitable. However, the FAC alleges only that Defendants acted improperly in collecting the debt and pursuing foreclosure. (FAC, ¶¶ 35-41.) Those allegations concern the manner in which the debt was enforced, not whether enforcement of the debt itself was inequitable. Plaintiffs allege no facts that enforcing the underlying debt in and of itself would be inequitable. (Compare Humboldt Savings Bank v. McCleverty (1911) 161 Cal.285, 291 [court held that it would be inequitable to require a defendant to pay her husband's debt of \$57,000, for which she was in no way liable, to attack the sale of her \$5,000 homestead].)

Plaintiffs further argue that “they attempted to resolve the indebtedness through substantial cash and third-party purchase offers, including offers of approximately \$550,000 and \$650,000, reflecting fair market value.” (FAC, ¶ 38.) However, the measure of tender under these circumstances is not fair market value, but rather the full amount of the debt owed. “As a condition precedent to an action by the borrower to set aside the trustee's sale on the ground that the sale is voidable because of irregularities in the sale notice or procedure, the borrower must offer to pay the full amount of the debt for which the property was security.” (Lona v. Citibank, N.A. (2011) 202 Cal.App.4th 89, 112.)

The rationale behind the tender rule is that if a borrower could not have redeemed the property had the procedures been proper, any irregularities in the sale did not result in damages to the borrower. (FPCI RE–HAB 01 v. E & G Investments, Ltd. (1989) 207 Cal.App.3d 1018, 1022.) Plaintiffs do not dispute that they are in default on the mortgage. Here, even accepting as true all the allegations in the FAC that Defendants did not have the authority to initiate or conduct the foreclosure process, Plaintiffs do not allege that they could have redeemed the property.

Thus, because the FAC does not allege that Plaintiffs tendered the amount of the debt or were otherwise excused from doing so, ALAW and AWEST have demonstrated sufficient grounds to sustain the demurrer on this basis.

In the interest of completeness, the Court will briefly address ALAW and AWEST's remaining argument directed at the FAC as a whole.

Trustee Liability

ALAW and AWEST also argue that neither the deed of trust nor the governing statutes create a duty on the part of a trustee to verify that an assignment is valid and further argue that their actions are privileged.

Generally, the trustees under a deed of trust, as ALAW and AWEST are in this case, have limited duties. “The scope and nature of the trustee's duties are exclusively defined by the deed of trust and the governing statutes. No other common law duties exist.” (Biancalana v. T.D. Serv. Co. (2013) 56 Cal. 4th 807, 819.) Trustees are granted a qualified immunity privilege under Civil Code sections 47 and 2924. (Kaur v. Dual Arch Internat., Inc. (2024) 107 Cal. App. 5th 359, 368.) This requires a showing of “actual malice” to impose liability against a trustee. (Id.)

Civil Code section 2924 subdivision (b) provides that “In performing acts required by this article or responding to requests for payoff or reinstatement information, the trustee shall not incur liability for any good faith error resulting from reliance on information provided in good faith by the beneficiary regarding the nature and the amount of the default under the secured obligation, deed of trust, or mortgage.”

The FAC alleges only that “[AWEST] acted as a trustee and conducted the foreclosure sale” and that “[ALAW] is a law firm that participated in foreclosure-related enforcement activity on behalf of one or more Defendants.” (Compl., ¶¶ 13-14.) There are no other allegations in the FAC regarding ALAW or AWEST's conduct. There are no allegations that ALAW or AWEST acted with malice. To the extent Plaintiffs assert in the opposition that ALAW and AWEST acted outside their statutory authority, the FAC includes no such allegations. Nor is it clear what statutory authority ALAW and AWEST purportedly

violated.

Thus, ALAW and AWEST's demurrer is properly sustained on this basis as well.

Although leave to amend should be freely granted, "[t]he burden is on the plaintiff to demonstrate the manner in which the complaint can be amended. (Ross v. Creel Printing & Publishing Company (2002) 100 Cal.App.4th 736, 748.) "To carry its burden, plaintiff must show the manner it can amend its complaint and demonstrate how that amendment will change the legal effect of the pleading." (Community Assisting Recovery, Inc. v. Aegis Security Insurance Co. (2001) 92 Cal. App. 4th 886, 895, citation omitted.)

Plaintiffs have not demonstrated how the deficiencies identified above could be cured through further amendment. The Court previously sustained ALAW and AWEST's demurrer to the Complaint on these same grounds, and afforded Plaintiffs an opportunity to amend, yet the FAC fails to cure the defects.

Accordingly, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

RULING:

Defendants Albertelli Law and America West Lender Services, LLC's Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.